

KORA-02 — Cherokee County Chapter 142 Records Request

Status: Final draft; not sent

Request ID: 20260903-CHEROKEE-CH142-001

Date: September 3, 2026

County: Cherokee

To: Administrative Assistant / KORA Officer, Cherokee County Sheriff; Shelby Robinson, County Open Records Coordinator; Rebecca Brassart, Official Custodian

Delivery address/email: Mail sheriff/jail copy to P.O. Box 479, 915 East Country Road, Columbus, KS 66725; email county-government copy to Shelby.Robinson@cherokeeconomy-ks.gov and rebecca.brassart@cherokeeconomy-ks.gov⁴

Subject

Kansas Open Records Act request concerning L. 2026, ch. 142 enforcement and immigration-detainer implementation

Request

Under the Kansas Open Records Act, K.S.A. 45-215 et seq.¹, I request electronic copies of the existing records described below. Unless an item states otherwise, the time period is July 1, 2026 through the date this request is received.

Section 5: unlawful approach of a first responder

1. All final or operative policies, general orders, standard operating

procedures, directives, legal bulletins, roll-call materials, training materials, presentations, scripts, or written instructions addressing the offense titled "unlawful approach of a first responder" in section 5 of L. 2026, ch. 142.

2. Records sufficient to show the number of warnings, citations, notices to

appear, arrests, bookings, case referrals, and charging recommendations for that offense, grouped by month and disposition category if those fields exist. This item seeks existing records or existing database exports, not a newly created analysis.

3. Each incident report, citation, probable-cause affidavit, arrest report, or

referral in which that offense was alleged. Personal information may be redacted where authorized by a specifically cited provision of law.

4. Records sufficient to identify the court and case number for every

prosecution or referral involving that offense.

5. Records sufficient to show the agency's retention periods for body-worn

camera, dash-camera, dispatch audio, CAD/event records, and officer messages associated with a warning, citation, arrest, or referral under that offense.

Immigration detainers and 287(g)

6. All final or operative policies, procedures, jail manuals, forms, training

materials, legal bulletins, or written instructions implementing sections 1, 2, 3, or 9 of L. 2026, ch. 142.

7. Every currently effective agreement, amendment, delegation, memorandum of

Sources: 1. [Kansas Open Records Act](#) | 2. [K.S.A. 45-218](#) | 3. [K.S.A. 45-221](#) | 4. [Cherokee County Sheriff administration](#) | 5. [Cherokee County KORA form](#)

agreement, or memorandum of understanding under 8 U.S.C. § 1357(g), commonly called a "287(g) agreement," to which the sheriff, jail, or county is a party.

8. Records sufficient to identify the date and manner in which each agreement

responsive to item 7 was approved, accepted, executed, renewed, or reported to the county commission.

9. Records sufficient to show, by month: (a) the number of immigration-detainer

requests received; (b) the number honored; (c) the number declined; (d) the number of persons held after they otherwise would have been eligible for release; and (e) the duration of each post-release-eligibility hold. Existing jail-management-system exports or reports are preferred; this request does not require a new analysis.

10. Blank or model forms used to receive, validate, record, honor, decline,

extend, or terminate an immigration-detainer hold, including federal Form I-247 variants used by the facility.

11. Records sufficient to identify any claim, demand, lawsuit, notice, judgment,

settlement, or request for state representation or reimbursement arising from immigration enforcement or a detainer hold under L. 2026, ch. 142.

Fiscal, insurance, and oversight records

12. All communications with the county's insurer, risk pool, broker, or risk

manager concerning L. 2026, ch. 142, federal immigration enforcement, detainer holds, 287(g), section 5 enforcement, coverage, exclusions, premiums, reserves, or risk-control recommendations.

13. Records sufficient to show expenditures and reimbursements attributable to

287(g), immigration-detainer implementation, or section 5 enforcement, including training, overtime, travel, equipment, detention, outside counsel, and insurance costs.

14. County commission agenda materials, minutes, resolutions, staff reports,

and presentations concerning any subject in items 6 through 13.

15. Records-retention schedules or destruction authorizations specifically

governing records responsive to this request.

Format, segregation, and timing

Please provide records electronically in their native format when reasonably available, preserving ordinary metadata. For database material, an existing CSV or spreadsheet export is preferred. PDF is acceptable for records without a useful native format.

Please treat each numbered item as severable. If any portion is withheld, produce all reasonably segregable open material and identify, item by item, the specific statutory provision authorizing the withholding. If K.S.A. 45-221(a)(10)³ is asserted, please specify which responsive records are claimed to be criminal-investigation records and process the administrative, policy, contract, financial, aggregate, and retention records separately.

K.S.A. 45-218(d)² requires the request to be acted upon as soon as possible and not later than the end of the third business day after receipt. If production cannot be completed then, please provide the detailed cause for delay and the place and earliest time and date the records will be available.

Fees and scope

Please notify me before incurring fees exceeding \$25.00 and provide an itemized estimate identifying the records, anticipated staff time by task and rate, and other actual attributable costs. Please do not begin work above that amount without written approval.

If a clarification would materially reduce cost or burden, identify the particular item and proposed narrowing. Do not delay processing of the remaining items. Rolling production is requested.

Delivery

Please send the acknowledgment, estimate, rolling productions, and final response to:

Matthew P. Goodman malcolmgoodmen@gmail.com 8681 SE 71st, Baxter Springs, KS 66713

Sincerely,

Matthew P. Goodman